

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 833

By: Daniels of the Senate

and

Tedford of the House

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9 An Act relating to personal injury suits; amending 12
10 O.S. 2021, Section 3009.1, which relates to medical
11 bills; stating criteria to determine satisfaction of
12 certain financial obligation; authorizing certain
13 admissible amounts in certain circumstances;
14 prohibiting certain retroactivity; providing for
15 codification; and providing an effective date.

16 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

17 SECTION 1. AMENDATORY 12 O.S. 2021, Section 3009.1, is
18 amended to read as follows:

19 Section 3009.1. A. Upon the trial of any civil action arising
20 from personal injury, the actual amounts paid for any services in
21 the treatment of the injured party, including doctor bills, hospital
22 bills, ambulance service bills, drug and other prescription bills,
23 and similar bills shall be the amounts admissible at trial, not the
24 amounts billed for such expenses incurred in the treatment of the
25 party. If, in addition to evidence of payment, a party submits a

1 signed statement acknowledged by the medical provider or an
2 authorized representative or sworn testimony that the provider will
3 accept the amount paid as full payment of the obligations, the
4 statement or testimony shall be admitted into evidence. The
5 statement or testimony shall be part of the record as an exhibit but
6 need not be shown to the jury. If a medical provider has filed a
7 lien in the case for an amount in excess of the amount paid, then
8 the bills in excess of the amount paid, but not more than the amount
9 of the lien, shall be admissible.

10 B. If no payment has been made, the Medicare reimbursement
11 rates in effect when the personal injury occurred, not the amounts
12 billed, shall be admissible if, in addition to evidence of
13 nonpayment, a party submits a signed statement acknowledged by the
14 medical provider or an authorized representative or sworn testimony
15 that the provider will accept payment at the Medicare reimbursement
16 rate less cost of recovery as provided in Medicare regulations as
17 full payment of the obligation. The statement or testimony shall be
18 admitted into evidence and shall be part of the record as an exhibit
19 but need not be shown to the jury. If a medical provider has filed
20 a lien in the case for an amount in excess of the Medicare rate,
21 then the bills in excess of the amount of the Medicare rate, but not
22 more than the amount of the lien, shall be admissible.

23 C. If no bills have been paid, or no statement acknowledged by
24 the medical provider or sworn testimony as provided in subsections A

1 and B of this section is provided to the opposing party and listed
2 as an exhibit by the final pretrial hearing, then the ~~amount billed~~
3 ~~shall~~ evidence to establish the reasonable value of the treatment
4 provided to the injured party that shall be admissible at trial
5 ~~subject to the limitations regarding any lien filed in the case is~~
6 limited to the amounts actually necessary to satisfy the financial
7 obligation for medical services or treatment rendered to the
8 plaintiff that have been incurred but not yet satisfied. This
9 evidence may not include any reference to sums that exceed the
10 amount for which the unpaid charges could be satisfied if submitted
11 to any health insurance covering the plaintiff or any public or
12 government-sponsored health care benefit program for which the
13 injured party is eligible, regardless of whether the incurred but
14 not yet satisfied charges have been or will be submitted to the
15 injured party's health insurance or public or government-sponsored
16 health care benefit program.

17 D. This section shall apply to civil actions arising from
18 personal injury filed on or after November 1, 2015.

19 SECTION 2. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 3009.2 of Title 12, unless there
21 is created a duplication in numbering, reads as follows:

22 A. Upon the trial of any civil action arising from personal
23 injury, evidence admissible to establish the reasonable value of any
24 necessary future treatment of the injured party not yet incurred,

1 including doctor or other health care provider bills, attendant care
2 bills, hospital bills, ambulance service bills, drug and other
3 prescription or medical equipment bills, bills for materials needed
4 in providing medical care and treatment for the party, and similar
5 bills shall be the amounts actually necessary to satisfy the
6 financial obligation for such treatment. Such evidence may not
7 include any reference to sums that exceed the amount for which the
8 financial obligation for future treatment of the injured party not
9 yet incurred could be satisfied if submitted to any health insurance
10 covering the injured party or any public or government-sponsored
11 health care benefit program for which the injured party is eligible.

12 B. If, at the time of trial, the reimbursement rate allowed by
13 any health insurance covering the injured party or any public or
14 government-sponsored health care benefit program for which the
15 injured party is eligible cannot be determined for any aspect of
16 necessary future treatment of the injured party not yet incurred,
17 then the Medicare reimbursement rates in effect at the time of trial
18 shall be the only amounts admissible at trial to establish the
19 reasonable value of any such necessary future treatment.

20 C. If, at the time of trial, the injured party is not covered
21 by any health insurance and is not eligible for coverage under any
22 private, public, or government-sponsored health care benefit
23 program, the Medicare reimbursement rates in effect at the time of
24 trial shall be the only amounts admissible at trial to establish the

1 reasonable value of any necessary future treatment of the injured
2 party not yet incurred.

3 D. The provisions of this section shall apply to civil actions
4 arising from personal injury filed on or after the effective date of
5 this act.

6 SECTION 3. This act shall become effective November 1, 2025.

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8 DIRECT TO CALENDAR.

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